so here in this principall case, the body is answerable for the debt, quousque paid, if the duty be once discharged, the body shall be also discharged, which is onely charged for this. Coke; When manucaptors are taken, traditur in ballium, he is then to be out of prison. Dodderidge, In *Felix Marshalls case*, the release was made to the baile, in the case remembred, here the release was made to the principall, and to the baile also, when the principall part is released, the debt by this is gone. Coke in the C. B. they enter a certain summe, but here an uncertaine, and therefore in the one case, the release is good, in the other not; the debt is not gone, as to the principall, by this bailing, but it remains a debt still, and he may render his body again, and discharge his baile, as appears by 14 H. 7. fol. 9. the Court was clear of opinion, that by this release, the debt is discharged, and that this being thus pleaded by the baile in barre to the scire facias, is a good plea, by the opinion of the whole Court, but they would not at this time over-rule the same; the parties perceiving the opinion of the whole Court, did rest satisfyed therein, and the matter never moved again.

[233] TIPLING *Plaintiff, against* PEXALL *Defendant.*

Entred Hill. 11 Jac. B. R. Rott. 274.

A misnomer of a corporation.

The case was upon a misnomer of a corporation, being the Corporation of Ship-wrights; the Company of Ship-wrights of Redderiffe, were incorporated, by the name of Præfecti & Gardianorum Naupegorum, de Redderiffe. Coke Chief Justice. Nauticarum, this is a name known for ship-wrights, and not naupegorum, the Company of Ship-wrights of Redderiffe, in the county of Sussex. Coke, They are to shew, how a speciall supplicavit shall be directed to them, the opinion of Manwood Chief Baron, was this, as touching corporations, that they were invisible, immortall, and that they had no soule; and therefore no subpœna lieth against them, because they have no conscience nor soule; a corporation, is a body aggregate, none can create soules but God, but the King creates them, and therefore they have no soules; they cannot speak, nor appear in person, but by attorney, and this was the opinion of Manwood Chief Baron, touching corporations.

Nota, that the writ was here directed, præfecto, & gardianis, & sociis. and in this varyed from their name of incorporation, and therefore for this misnaming of the corporation, by the rule of the whole Court, the writ was held to be bad.

NOOTH *Plaintiff, against* WYARD *Defendant.*

Entred Hill. 11 Jac. B. R. Rott. 1016.

1 Ro. R. 52. An action of debt for rent by the husband alone.

In an action of debt, brought for rent, the case appeared to be this, a lease for years was made to the defendant, rendring rent; afterwards, the reversion of this was granted, to the plaintiffe, and to his wife; the tenant for years attorns, the term ended, and for rent areere, the plaintiff alone brought an action of debt; and whether this action so lyeth by the plaintiffe alone, without joyning of **[234]** his wife with him, they having a joynt estate in the reversion, was the question. Haughton, This is an incurable fault; for he having this onely in right of his wife, although the terme be ended; before the action brought; he ought to have joyned his wife with him in the action; for it hath been agreed, that if the terme had continuance, he ought to have joyned his wife with him in the action; and the ending of the terme here, before the action brought, makes no difference at all in the case; but that he ought to joyne his wife with him in the action.

Note, that at another time (s) termin. Trinit. 12 Jac. B. R. this matter was moved again. It was urged, that here the action is brought by him as an assignee, and therefore he ought to joyn his wife with him in the action, for that he is not an

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